

1.

CASE #	CASE NAME	HEARING NAME
CVRI2302810	WALTERS WHOLESALE ELECTRIC CO, VS ONARCH INC.	MOTION TO VACATE DISMISSAL

Tentative Ruling: GRANTED per CCP473.5

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404876	PORTOBANCO VS GENERAL MOTORS LLC	MOTION FOR ATTORNEYS' FEES

Tentative Ruling: PROOF OF SERVICE: Proper

GRANT the motion and award Plaintiff the reduced amount as follows: \$8140.00 in attorney's fees and \$818.92 in costs. The total amount is \$8958.92.

This is a lemon law action. On June 30, 2020, Plaintiffs Maria De Jesus Portobanco and Luis Andres Garibay purchased a 2020 GMC Sierra 1500 (the "Vehicle") that Defendant General Motors LLC (or "GM") issued an express warranty for. The Vehicle suffered defects and nonconformities that manifested during the applicable warranty period. None of the repairs performed by Defendant's authorized repair facilities have permanently repaired the defects. GM has failed to replace the Subject Vehicle or promptly make restitution as required under the Song-Beverly Act (the "Act").

The operative Complaint, filed August 22, 2024, asserts causes of action for (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act and (2) Breach of Express Warranty under the Song-Beverly Warranty Act.

On December 30, 2025, Plaintiff filed a Notice of Conditional Settlement of Entire Case.

Plaintiffs now move for an award of \$15,050 in attorney fees and \$968.92 in costs for a total of \$16,018.92. Plaintiffs contend they are entitled to the foregoing as the